The Standard of Care

English tort law | Study guide | Reasonable care, foresight and competence

1. The benchmark for breach

The **standard of care** is the level of care required of a defendant who owes a relevant duty to the claimant. Conduct falling below that standard is a **breach of duty**. Meeting the standard does not guarantee that no accident will happen.

The defendant need not go beyond what reasonable care requires. But calling the standard a “bare minimum” must not suggest that little effort always suffices: serious risks may require substantial precautions. Breach alone is not a completed negligence claim; causation and actionable damage must also be established.

2. Objective does not mean context-free

The general question is what a **reasonable person in the defendant’s position** would have done in the circumstances. It is objective because the defendant’s personal belief, temperament or ordinary habits do not determine the legal benchmark.

The transcript goes too far in saying the standard ignores the facts or activity. The circumstances are essential. The precautions reasonably required in heavy rain may differ from those required on a dry road, without changing the objective nature of the assessment.

3. A legal benchmark, not an actual person

The reasonable person is neither excessively fearful nor recklessly confident. It is not simply a statistical average of how people behave. A widespread practice may still be careless, and the law does not demand every imaginable precaution.

Nor does every difference from a reasonable person’s preferred conduct prove breach. Several courses of action may all be reasonably careful. Ask whether the actual conduct fell outside the acceptable standard, not whether somebody could imagine a different choice.

> Duty identifies the legal obligation. Standard identifies the required care. Breach compares actual conduct with that standard. Causation and damage examine the legally relevant consequences.

Scope: general English negligence principles. Children and professional work may require an appropriate special benchmark; these are addressed separately in the series.

Blyth: Reasonable Precautions

1. The classic definition

Blyth v Birmingham Waterworks Co (1856) 11 Exch 781 describes negligence through failing to do what a reasonable person would do, or doing what a prudent and reasonable person would avoid. This covers both acts and omissions where a relevant duty exists.

The definition concerns reasonable care in context. It does not make everyone responsible for every harm they could physically have prevented. In particular, a duty to take the omitted step must first be identified.

2. Facts and outcome

Exceptionally severe frost affected waterworks apparatus, and escaping water damaged the claimant’s home. The apparatus was sound and had worked properly over many years. The question was whether reasonable precautions should have prevented the exceptional event.

The waterworks company won in the Court of Exchequer. The evidence did not establish negligence. Precautions appropriate to frost reasonably anticipated from experience were not made inadequate merely because this exceptional frost defeated them.

3. Reasonable foresight, not hindsight

Assess the conduct using the information reasonably available before the event. Knowing that a loss occurred does not prove that a reasonable person should have predicted and prevented it. Equally, a defendant cannot ignore a danger merely because it has not caused an accident before.

Invented variation: repeated inspections reveal a defective fitting likely to leak during ordinary winter weather. Doing nothing despite that warning differs from Blyth. The danger is no longer simply an exceptional event outside reasonable anticipation.

> Blyth does not mean “cold weather excuses a water company”. It illustrates the need to prove a failure to take reasonable precautions against a risk that should have been anticipated.

Correct name: Blyth, not Blythe. The variation is invented. The 1856 case provides a legal principle, not current technical guidance for water infrastructure.

Glasgow Corporation v Muir

1. What happened?

In **Glasgow Corporation v Muir [1943] AC 448**, rain disrupted a church party's picnic. The manageress of premises operated by Glasgow Corporation allowed the party to use the tearoom and bring its own refreshments.

Two members of the party carried a large urn of hot tea through an entrance passage near children buying sweets and ice cream. One carrier released his handle, for reasons not satisfactorily explained in evidence. Hot tea escaped and scalded six children.

2. Whose conduct was challenged?

The case against the Corporation concerned its manageress's decision to permit the urn to be brought through without further protective arrangements. It was not simply a case of the defendant personally spilling a small teapot. Liability of the carriers themselves was not the issue decided against the Corporation.

3. Who won, and why?

Glasgow Corporation won in the House of Lords. No negligence by the manageress was established. On the evidence, an ordinary urn carried with reasonable care did not present a danger she should have anticipated would produce this accident.

The court applied reasonable foresight, free from excessive apprehension or overconfidence. The serious outcome did not justify imposing a standard of prediction beyond what an ordinary reasonable person should have exercised.

4. The limit of the decision

It does not mean that carrying hot liquids near children is always safe. A known broken handle, visible instability or specific warnings could change what precautions were reasonable. Those are illustrative changes, not findings in Muir.

> Identify the precise alleged failure: permission and precautions by the manageress. Then assess that conduct before the event; do not assume that every person associated with an accident must be negligent.

The case arose in Scotland and is also used in English tort law to explain the reasonable-person standard. The physical cause and the legal question about this defendant must be kept distinct.

Nettleship v Weston

1. Facts: a learner driver

In **Nettleship v Weston [1971] 2 QB 691**, Mrs Weston was learning to drive. Her friend Mr Nettleship was instructing her. After turning a corner, she failed to straighten the car; it mounted the kerb and hit a lamp-post. Mr Nettleship suffered a fractured kneecap.

He had checked that the insurance covered him as a passenger. She argued, among other things, that his knowledge of her inexperience should affect the claim. The issue was not whether she had honestly tried her best, but what driving standard the law required.

2. A competent-driver standard

The majority applied the standard of a reasonably competent, experienced and careful driver. The learner's inexperience did not lower that benchmark, including towards the friend teaching her. Personal effort could not substitute for the required competence.

3. Who won, and why only half?

Mr Nettleship succeeded on appeal. The majority nevertheless reduced his damages by 50% for contributory negligence. His shared control and failure to react quickly enough supported the finding that both parties were at fault.

The reduction was not an automatic penalty for being an unpaid or non-professional instructor. Nor did knowing that the driver was inexperienced, by itself, mean he had accepted injury without a legal remedy.

4. What the case does not decide

Do not use Nettleship to erase every adjustment to the standard of care. A reasonable child of the same age is ordinarily the relevant comparison for a child defendant; specialist work can call for a professional benchmark. There is no automatic rule that only very young children receive age-sensitive assessment.

> A beginner may be judged against competent performance in the activity. Separate the defendant's standard from the claimant's contributory negligence: the latter may reduce damages without reducing the former.

Corrections to the transcript: lamp-post, not a tree; fractured kneecap, not merely an unspecified trivial injury; reduction for contributory negligence, not simply lack of a professional teaching qualification.

Check Your Understanding

1. What is the standard of care?
Answer: The level of care legally required in the relevant situation. Falling below it constitutes breach of the relevant duty.

2. Does objective mean identical precautions in every case?
Answer: No. The benchmark is objective, but its application depends on the activity, risk and circumstances reasonably knowable at the time.

3. Does any alternative action prove breach?
Answer: No. More than one response may be reasonably careful. The actual conduct must fall below the required standard.

4. Why did the company win in Blyth?
Answer: The evidence did not show a failure of reasonable precautions against anticipated frost. The exceptional event did not itself establish negligence.

5. Why did Glasgow Corporation win in Muir?
Answer: Negligence by the manageress was not established. Reasonable foresight on the evidence did not require her to anticipate this accident from permitting the urn to be carried through.

6. What standard applied to Mrs Weston?
Answer: A reasonably competent, experienced and careful driver, rather than a lower standard based on her personal inexperience.

7. Why did Mr Nettleship recover only half?
Answer: The majority found contributory negligence by him. It was not an automatic consequence of lacking professional instructor status.

8. Is breach enough for a successful negligence claim?
Answer: No. The claimant must establish the relevant duty, causation and actionable damage, with other limits and defences considered.

> Exam sequence: identify the relevant duty → choose the appropriate benchmark → assess the facts without hindsight → compare actual conduct → explain breach or no breach → examine causation, damage and defences.

Sources

Adapted from the supplied Law Academy transcript, correcting context, case facts and the reason for the damages reduction. Primary judgments: Blyth (1856) 11 Exch 781; Glasgow Corporation v Muir [1943] AC 448; Nettleship v Weston [1971] 2 QB 691. Invented variations are marked; case summaries focus on the standard of care.